

GUN-FREE SCHOOL BOARD BUILDINGS AND PROPERTY

The Gun-Free School Zones Act of 1995 prohibits any unauthorized individual from knowingly possessing a loaded or unsecured firearm at a place that the individual knows, or has reasonable cause to believe, is a school zone as outlined in 18 U.S.C. § 921(a)(25) and 18 U.S.C. § 922(q). School zone means in or on the grounds of an elementary or secondary school or within 1,000 feet from the grounds of such school. This policy addresses school board buildings and property that are not school zones.

1. In accordance with § 22.1-131.1 of the Code of Virginia, the School Board deems any non-school zone building or property that it owns or leases where employees of the School Board are regularly present for the purpose of performing their official duties as a gun-free zone. This regulation thereby prohibits any individual from knowingly purchasing, possessing, transferring, carrying, storing, or transporting firearms, ammunition, or components or combination thereof while such individual is upon such property subject to the provisions of Section 22.1-131.1.

2. Such prohibition shall not apply to the following based on § 22.1-131.1 of the Code of Virginia:

A. Any law-enforcement officer;

B. Any retired law-enforcement officer qualified to carry firearms pursuant to subsection C of § 18.2-308.016 of the Code of Virginia;

C. Any individual who possesses an unloaded firearm that is in a closed container in or upon a motor vehicle or an unloaded shotgun or rifle in a firearms rack in or upon a motor vehicle; or

D. Any individual who has a valid concealed handgun permit and possesses a concealed handgun while in a motor vehicle in a parking lot, traffic circle, or other means of vehicular ingress to or egress from the school board property.

3. This regulation applies to all non-school zone property where employees of the School Board are regularly present for the purpose of performing their official duties and applies to any new acquisitions or leases of non-school zone property.

4. Signage will be installed at all applicable locations to enforce this regulation. The division website will be updated to reflect the provisions of this regulation.

5. Failure to comply with this regulation could result in prosecution under Code of Virginia § 18.2-119, a Class 1 misdemeanor.

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This Regulation is in effect as of July 1, 2021.

Issued: 6/30/21

Legal Refs.: §§ [18 U.S.C. § 921\(a\)\(25\)](#), [18 U.S.C. 922\(q\)](#), §§ [18.2-119](#), [18.2-308.016](#),
and [22.1-131.1](#) of the Code of Virginia